

Sau. Kavita Krunal Gawande vs Krunal S/O Jitnish Gawande on 12 January, 2021

Author: Swapna Joshi

Bench: Swapna Joshi

1/4

33.mca.1145.19. (Judg

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH : NAGPUR

MISC. CIVIL APPLICATION NO. 1145 OF 2019

Sau. Kavita Krunal Gawande
Aged about 26 Years, Occu-Household;
R/o Flat No. T-2, Chandrabhaga
Apartment, Civil Lines, Chandrapur.
Tahsil and District Chandrapur.

... APPLICANT

VERSUS

Krunal Jitnish Gawande
Aged about 32 Years, Occu - Service;
Resident at - Tukdoji Chowk, Sakkardara,
Nagpur. Tahsil & District Nagpur.

... RESPONDENT

Ms. G. R. Diwe, Advocate for Applicant.
Ms. A. P. Gupta, Advocate for Respondent.

CORAM : MRS. SWAPNA JOSHI, J.
DATE : JANUARY 12, 2021.

JUDGMENT

. Rule. Rule is made returnable forthwith. Heard finally with consent of the learned Counsel for both sides.

2/4 33.mca.1145.19.(Judg)

2. By this Application, Applicant seeks transfer of matrimonial proceedings pending on the file of Family Court, Nagpur vide Petition-A No.1174/2019 to the file of Family Court, Chandrapur or Civil

Judge Senior Division, Chandrapur.

3. The marriage between the Applicant - wife and the Respondent - husband was solemnized on 29/4/2018. After marriage both of them have started residing at Chandrapur. However, on 1/7/2018 due to some dispute the Respondent - husband left the company of the Applicant - wife without any sufficient reason. On 4/8/2018 the Applicant - wife filed Application under Section 12 of the Protection of Women from Domestic Violence Act against the Respondent - husband for grant of maintenance, right of residence and protection before the Chief Judicial Magistrate, Chandrapur vide Criminal Case No.99/2018. The learned Chief Judicial Magistrate, Chandrapur vide order dated 30/9/2019 granted maintenance of Rs.6000/- per month to the Applicant - wife.

4. Being aggrieved by the said order, Respondent - husband has preferred an appeal under Section 29 of the Domestic Violence Act 3/4 33.mca.1145.19.(Judg) before the Sessions Court, Chandrapur vide Misc. Criminal Appeal No.75 of 2019. On 5/10/2019 the Respondent - husband has filed the Petition under Section 9 of the Hindu Marriage Act before the Family Court, Nagpur vide Petition-A No.1174 of 2019.

5. Ms. Diwe, the learned Counsel for Applicant - wife contended that the Applicant is unable to attend the proceedings before the Family Court, Nagpur, as no maintenance is paid regularly by the Respondent.

6. The Hon'ble Apex Court in the matter of Sumita Singh V/s Kumar Sanjay & Anr. Reported in AIR 2002 SC 396 has observed that wife's convenience must be considered in matrimonial proceedings, particularly when the husband has filed the petition against her.

7. Considering the aforesaid circumstances, it would be just and proper to transfer the proceedings under Section 9 of the Hindu Marriage Act i.e. Petition-A No.1174/2019 pending on the file of Family Court, Nagpur to the Court of Civil Judge Senior Division, Chandrapur. Hence, the following order.

4/4

33.mca.1145.19. (Judg)

ORDER

(i) Misc. Civil Application No. 1145 of 2019 is allowed.

(ii) The proceedings i.e. Petition-A No.1174 of 2019 pending on the

file of Family Court, Nagpur is hereby transferred to the Court of Civil Judge Senior Division, Chandrapur.

(iii) Parties to appear before the Court of Civil Judge Senior Division, Chandrapur on 1st February, 2021.

8. Rule is made absolute in aforesaid terms. There shall be no order as to costs.

[MRS. SWAPNA JOSHI, J.] Yadav VG